Tyler Allen Lofall
6880 NW 271st Ave
Hillsboro, OR 97124
Email: tyleralofall@gmail.com
Phone: (386) 262-3322

UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

TYLER A. LOFALL,
Plaintiff,

Case No.: 3:24-cv-00839

MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

v.

THE COUNTY OF CLACKAMAS, et al.,
Defendants.

Dated this 8th day of October, 2024.

Respectfully submitted,

_____
Tyler Allen Lofall
Plaintiff, Pro Se

Tyler Allen Lofall Pro Se Plaintiff
MAIL:6880 N.W. 271st Ave
ONLY:Hillsboro, OR 97124
Email:tyleralofall@gmail.com
Cell Phone: (386) 262-3322

UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

TYLER A. LOFALL, Plaintiff, v. **THE COUNTY OF CLACKAMAS at el,** *West Linn Pd, Officer Dana Gunnarson, Officer Catlin Blyth, Deputy District Attorney Rebecca Portlock, Clackamas County Jail, Clackamas County Sheriff Office, Clackamas County Officer John Doe 1, Officer John Doe 2,* Defendant(s),	**Case No.: 3:24-cv-839** AMENDED COMPLAINT JURY TRIAL REQUESTED 42 U.S.C 1983 VIOLATIONS OF THE FIRST, FOURTH, FIFTH, SIXTH SEVENTH, AND FOURTEENTH AMENDMENTS *(with emphasis in the FOURTH, SEVENTH, and FOURTEENTH AMENDMENTS)*

AMENDED COMPLAINT

I. TABLE OF CONTENTS

I. INTRODUCTION 8

Additional Legal Context..... 11

II. Jurisdiction and Venu 12

III. PARTIES 14

Plaintiff 14

Tyler Allen Lofall 14

Defendants 15

Clackamas County 15

West Linn Police Department 15

Officer Dana Gunnarson 16

Officer Catlin Blyth 16

Clackamas County Sheriff's Department 17

Clackamas County Jail 18

Deputy District Attorney Rebecca Portlock 18

John Does 1-2 19

Non-Party Individuals 19

Judge Steel 19

Ruben Medina 20

Macy Galla 20

Joseph McDonald (AOB) 20

Brook Woods (AOB) 21

Clackamas County Judiciary 21

IV. Factual Background 21

V. Probable cause and qualified immunity 40

Introduction 40

A. DEPUTY DISTRICT ATTORNEY REBECCA PORTLOCK VIOLATES THE TRUST OF THE PUBLIC AND THEREFORE IS NOT OWED ABSOLUTE IMMUNITY 41

Legal Basis: 41

Allegations: 42
B. Violation of Clearly Established Constitutional Rights 43

A. Unlawful Arrest and Lack of Investigation..... 43
B. Ignoring Exculpatory Evidence..... 44
C. Collusion Between the DA and Attorneys 45

D. No reasonable prosecutor or attorney could believe that such manipulation and deceit in a criminal case is lawful. The DA's actions, in concert with Plaintiff's attorneys, represent a clear violation of Plaintiff's Sixth Amendment rights to a fair trial. 46

Lack of Probable Cause 46
E. Municipal Liability 47

F. Conclusion 47

VI. Clauses of action 48

First Cause of Action: Unlawful Arrest/False Arrest (Fourth Amendment Violation) 49

Second Cause of Action: Malicious Prosecution (Fourth and Fourteenth Amendments Violation) 51

Third Cause of Action: Conspiracy to Violate Civil Rights (42 U.S.C. § 1983) 53

Fourth Cause of Action: Failure to Protect/Failure to Prevent Harm (Fourteenth Amendment Violation)..... 55

Fifth Cause of Action: Cruel and Unusual Punishment (Fourteenth Amendments Violation) 57

Sixth Cause of Action: False Imprisonment (Fourth and Fourteenth Amendments Violation) 58

Seventh Cause of Action: Deliberate Indifference to Medical Needs (Fourteenth Amendments Violation) 60

Eighth Cause of Action: Intentional Interference with Contractual Relations 62

Ninth Cause of Action: Monell Claim – Failure to Train and Official Custom of Deliberate Indifference 64

Tenth Cause of Action: Denial of Right to Civil Jury Trial (Seventh Amendment Violation) 66

Eleventh Cause of Action: Violation of Right to Due Process (Fifth and Fourteenth Amendments) 68

Twelfth Cause of Action: Violation of Right to Counsel and Fair Trial (Sixth Amendment Violation) 70

VII. Constitutional Provisions 72

CONSTITUTIONAL PROVISIONS 72

SYSTEMIC CORRUPTION AND DENIAL OF RIGHTS 75

FEDERAL INTERVENTION REQUIRED 76

VIII. PRAYER FOR RELIEF 77

IX. personal impact 78

CONCLUSION 83

X. PRAYER FOR RELIEF 83

XI. damages 84

Damages Breakdown by Defendants 84

Summary of Damages 86

XII. DEFENDANTS AND CAUSES OF ACTION 86

XIII. Jury trial requested 87

SEVENTH AMENDMENT DEMAND FOR A CIVIL JURY TRIAL 87

Legal Basis 88

XIV. Conclusion 88

XV. Prayer for relief 89

Plaintiff seeks the following relief: 89

1. Compensatory Damages: 89
2. Punitive Damages: 89
3. Injunctive Relief: 89
4. Declaratory Judgment: 90
5. Restoration of Rights: 90

Compliance Check (Third Person) for Federal Claims and Jurisdiction: 94

1. Unlawful Detention (Fourth Amendment) 94

2. Malicious Prosecution (Fourth and Fourteenth Amendments) 94

3. Conspiracy to Deprive Civil Rights (Fourteenth Amendment, Section 1983)..... 95

4. Failure to Prevent Harm (Fourteenth Amendments)..... 96

5. Cruel and Unusual Punishment (Fourteenth Amendment) 96

6. False Imprisonment (Fourth and Fourteenth Amendments)..... 97

7. Deliberate Indifference (Fourteenth Amendments) 97

8. Intentional Interference with Contractual Relations (Fourteenth Amendment, Due Process Clause) 98

9. Monell Claim (Failure to Train and Official Custom of Deliberate Indifference)..... 99

Conclusion: 99

Coordination of Actions between State and Federal Courts..... 100

Pattern of Procedural Abuse 101

Systemic Harms Beyond the Complaint..... 105

I. INTRODUCTION

1

Tyler Allen Lofall, Plaintiff in this action, submits this Amended Complaint against the following defendants: Clackamas County, West Linn Police Department, Officer Dana Gunnarson, Officer Catlin Blyth, Clackamas County Sheriff's Department, Clackamas County Jail, Deputy District Attorney Rebecca Portlock, and John Does 1-2.

2

This case arises from a series of actions beginning in March 2022, involving false arrest, malicious prosecution, unlawful detention, denial of adequate medical care, and various other constitutional violations committed by the defendants under color of state law. These actions resulted in the Plaintiff suffering ongoing harm, including the loss of an **Assignment of Benefits valued at $111,943.56** and the dismissal of a **counterclaim valued at $32,599.50** in a separate legal matter, both of which occurred due to the Defendants' interference and obstruction.

3

The Plaintiff initially filed separate claims in state and federal courts. However, the Plaintiff's federal claim, which included the State of Oregon, was dismissed due to sovereign immunity. The Plaintiff

now amends the complaint to remove the State of Oregon while maintaining the claims against the remaining defendants. The Plaintiff seeks to consolidate all claims under federal jurisdiction to ensure that the full extent of the constitutional violations and damages can be addressed in a single proceeding.

4

Furthermore, Plaintiff requests the Court toll the statute of limitations due to the tolling provided by memoranda issued during the state of emergency in 2022, the ongoing nature of the litigation in state court, and the discovery of new harms in May 2024. The Plaintiff argues that the delay in filing these claims, caused by ongoing legal resistance from the Defendants, should not preclude a fair adjudication of his claims. The Plaintiff asserts that despite these efforts, he has consistently acted in good faith to pursue his claims and deserves his day in court to present the facts and seek redress for the harms suffered.

5

The Plaintiff asserts violations of his **Fourth, Fifth, Seventh, and Fourteenth Amendment** rights, as well as claims under **42 U.S.C. § 1983**, including unlawful detention, malicious prosecution, conspiracy to deprive civil rights, failure to train, and destruction of property/claim rights. These claims are supported by substantial evidence,

including the Plaintiff's **Declaration Narrative**, which is incorporated herein as the **Factual Background**.

6

This narrative details the series of events and systemic failures leading to the harms suffered by the Plaintiff, and the narrative demonstrates the intentionality and negligence of the Defendants in violating the Plaintiff's rights.

7

The Plaintiff requests this Court exercise its jurisdiction over all claims, including those against the **West Linn Defendants**, while maintaining the option to separate claims involving the West Linn Defendants if necessary. The Plaintiff contends that the interconnected nature of the claims makes it imperative that they be heard together to ensure justice is served. Should the federal court decline jurisdiction over specific parties, the Plaintiff requests that those parties be severed and removed from the complaint as needed.

Additional Legal Context

The Plaintiff's amended complaint includes claims under the following legal provisions:

- **42 U.S.C. § 1983**: Civil rights violations, including unlawful detention, malicious prosecution, and denial of equal protection.

- **Fourth Amendment**: Protection against unreasonable searches and seizures, including false arrest and unlawful detention.

- **Fifth Amendment**: Protection against deprivation of life, liberty, or property without due process of law.

- **Seventh Amendment**: Right to a civil trial, which was unjustly denied to the Plaintiff.

- **Fourteenth Amendment**: Guarantee of due process and equal protection under the law, which the Plaintiff asserts were violated through the systemic actions of the Defendants.

II. JURISDICTION AND VENU

8

This Court possesses federal-question jurisdiction over this matter pursuant to 28 U.S.C. § 1331, as the action involves claims arising under the Constitution and laws of the United States.

9

Specifically, the claims are grounded in 42 U.S.C. § 1983, concerning alleged violations of the Plaintiff's civil rights as protected under federal law. .

10

Venue is appropriately established in this District under 28 U.S.C. § 1391. The justification for this is Multifaceted: firstly, a substantial portion of the events or omissions that form the basis of the claims transpired within this District; secondly, the Defendants either reside or can be found within this District, Moreover, as time ticked away, more alike actions revealed their self, and Lofall being ensnared with additional difficulties upon his unlawful arrest. With the state creating the maximum delays the federal government is the only one who can simply have the right to correct the violations the state failed to do so, is refusing to do so, and flat out cannot deny doing so.

11

The State, to judge its own wrong doing, would be one thing if It was correcting its self, but its not, especially when its actions and those representing the state are striving for procedural unfairness as surpassing its duty to Constitutional right protections, further cementing the appropriateness of this venue.

12

Under Article III, Section 2 of the United States Constitution, the federal judiciary is vested with the authority to adjudicate all cases in law and equity arising under the Constitution, our laws, and treaties of the United States. This includes cases where a citizen asserts a violation of rights granted by the federal constitution against their state, particularly when seeking injunctive relief. Such cases inherently "arise under this Constitution," hence falling within the ambit of federal jurisdiction.

13

Given the context of this case – where the state court has failed to rectify the issue, despite being afforded the opportunity to do so – the federal court's intervention becomes imperative. The state court's inaction, characterized by procedural delays, risks eclipsing the statute of limitations and denies the Plaintiff the opportunity for redress. This federal

court, therefore, is not only appropriate but necessary to adjudicate the claims presented, ensuring the enforcement of constitutional rights and the provision of timely justice.

III. PARTIES

Plaintiff

Tyler Allen Lofall

14

A legally blind individual, residing in Hillsboro, Oregon, and a pro se litigant. Plaintiff has suffered extensive constitutional violations, including unlawful detention, malicious prosecution, denial of due process, and deprivation of his civil rights under the U.S. Constitution. Plaintiff was subjected to multiple harms by the Defendants, including financial damages resulting from the loss of an Assignment of Benefits valued at $111,943.56 and a counterclaim of $32,599.50. Plaintiff also endured emotional, physical, and financial hardships caused by systemic failures within Clackamas County and the abuse of power by various Defendants.

Defendants

Clackamas County

15

A governmental entity responsible for maintaining law enforcement, judicial processes, and jail operations within Clackamas County, Oregon. Clackamas County is responsible for the actions of its employees and officials, including the Sheriff's Department and judicial personnel, who engaged in systemic failures that violated Plaintiff's constitutional rights.

16

Claims: Violation of the **Fourth, Fifth, Seventh, and Fourteenth Amendments**, **42 U.S.C. § 1983**, Failure to Train, Malicious Prosecution, Destruction of Property/Claim Rights, Denial of Equal Protection.

West Linn Police Department

17

A law enforcement agency within West Linn, Oregon. The Department, along with its officers, engaged in malicious prosecution, unlawful detention, and conspiracy to deprive Plaintiff of his civil rights through unconstitutional actions.

18

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Failure to Train, Destruction of Property/Claim Rights, Denial of Equal Protection.

Officer Dana Gunnarson

19

A police officer employed by the West Linn Police Department. Officer Gunnarson participated in Plaintiff's unlawful detention and malicious prosecution. Officer Gunnarson acted in conspiracy with other officers and officials to deprive Plaintiff of his civil rights.

20

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Unlawful Detention, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Destruction of Property/Claim Rights.

Officer Catlin Blyth

21

A police officer employed by the West Linn Police Department. Officer Blyth was involved in the unlawful detention and

malicious prosecution of Plaintiff and participated in the conspiracy to deprive Plaintiff of his constitutional rights.

22

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Unlawful Detention, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Destruction of Property/Claim Rights.

Clackamas County Sheriff's Department

23

The Sheriff's Department operates under the authority of Clackamas County. The department failed to train its staff adequately, resulting in Plaintiff's false imprisonment, deprivation of adequate medical care, and failure to protect his constitutional rights.

24

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Failure to Train, Denial of Adequate Medical Care, False Imprisonment.

Clackamas County Jail

25

A correctional facility operated by Clackamas County. Jail personnel contributed to the violation of Plaintiff's rights by failing to provide adequate medical care and continuing Plaintiff's unlawful detention.

26

Claims: Violation of the **Fourteenth Amendment**, **42 U.S.C. § 1983**, Failure to Train, Denial of Adequate Medical Care, False Imprisonment.

Deputy District Attorney Rebecca Portlock

27

Deputy District Attorney Portlock engaged in malicious prosecution and conspired with other defendants, including West Linn Police Department officers, to deprive Plaintiff of his civil rights. Her actions contributed to Plaintiff's unlawful detention and denial of due process.

28

Claims: Violation of the **Fourteenth Amendment**, **42 U.S.C. § 1983**, Malicious Prosecution, Conspiracy to Deprive Civil Rights.

John Does 1-2

29

Unknown individuals whose actions contributed to the conspiracy to deprive Plaintiff of his civil rights, unlawful detention, and the deprivation of due process. Their specific identities will be discovered through litigation.

30

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Conspiracy to Deprive Civil Rights, Malicious Prosecution.

Non-Party Individuals

Judge Steel

31

A Clackamas County judge who presided over critical events in Plaintiff's case, where collusion was evidenced between Plaintiff's attorney advisor and the prosecuting attorney. Judge Steel is not named as a defendant but was a key figure in conversations highlighting the systemic failures of the Clackamas County Judiciary.

Ruben Medina

32

Plaintiff's court-appointed attorney advisor. Medina acted in concert with prosecutors, contributing to the systemic obstruction of justice and the deprivation of Plaintiff's constitutional rights. He is not a defendant but played a significant role in the events giving rise to Plaintiff's claims.

Macy Galla

33

The alleged victim and primary witness in the underlying harassment case, Macy Galla was leveraged through threats to her children's custody to make false claims against Plaintiff. She is not a defendant but her involvement is crucial to understanding the malicious prosecution and systemic abuses that occurred.

Joseph McDonald (AOB)

34

Attorney involved in the separate legal matter regarding Plaintiff's **Assignment of Benefits**. McDonald's handling of the case, in collusion with other parties, resulted in the loss of the Assignment of Benefits valued at $111,943.56. McDonald is not named as a defendant but his actions are relevant to Plaintiff's financial harm.

Brook Woods (AOB)

35

Attorney for the heirs involved in the separate legal matter regarding Plaintiff's Assignment of Benefits. Woods's handling of the case resulted in Plaintiff's financial loss, contributing to the overall harm.

Clackamas County Judiciary

36

The judiciary of Clackamas County is not named as a defendant, but its actions and systemic failures, including the denial of Plaintiff's constitutional rights and the allowance of collusion between judges and attorneys, are central to this case.

IV. FACTUAL BACKGROUND

1. March 4-6, 2022: Initial Incidents of Property Damage and Harassment

37

On March 4, 2022, Plaintiff, Tyler A. Lofall, began experiencing severe harassment and property damage at his residence, perpetrated by an individual named Macy ('Massiel Galla'), whom was a friend and the owner of the West Linn Property. Over the course of three days, Macy, on a substance abuse bender, engaged in a pattern of destructive behavior, including smashing windows, pouring 30 pounds of flour each of

three days through the broke out windows onto Plaintiff's bed, electronics, clothes, and damaging his tools, and property beyond repair. (See Exhibit 26 page 25)

38

Stemming from jealousy and substance abuse, on March 4th, Macy smashed multiple windows, rendering them unusable, purchased 5 gallons of gasoline, and threatened to burn down the house and plaintiffs items, taking his keys and work files in retaliation of his lack of attention due to a separate legal matter taking an enormous amount of his time. (See exhibit 18)

39

Officers Clearly state "Upon arrival I observed a window on the bottom level of her house broken. Officer Amendola made contact with Massiel. Massie I appeared to be extremely frustrated. MasseIi informed us that she has asked Tyler to leave her house multiple times. Due to Tyler refusing to leave her house, Masseli threatened to burn the house down" (See Exhibit 7 page 2)

40

So she had asked Plaintiff to leave, while holding his truck keys, and work files, a clear violation of Plaintiffs rights. Officers not

having a duty or authority to make Plaintiff leave, however had a duty and authority to protect Plaintiff, yet despite his requests, the damages, and the threats they heard with their own ears they did nothing. (See Exhibit 26 Page 25)

41

The officers left the 5 Gallons of gasoline even though both officers and dispatch heard, were aware of the complaint Plaintiff was claiming, its in the officers reports about the windows being pounded out, and threats to him by Macy to burn down the house. See Exhibit

42

On March 5th, she continued her destructive actions, causing extensive damage to Plaintiff's personal and professional equipment. By March 6th, Macy had attacked Plaintiff with a hammer and hose, further escalating the violence and destruction from Plaintiff's property to Plaintiff him self (Exhibits 19 & 20; Exhibit 21).

2. **March 4-6, 2022: Plaintiff's Attempts to Seek Police Assistance**

43

In response to Macy's aggressive actions, Plaintiff contacted the West Linn Police Department (WLPD) multiple times, reporting Macy's violent behavior and the ongoing destruction of his property. Despite these urgent calls for help, the WLPD failed to intervene or take effective action

to protect Plaintiff from further harm. Plaintiff was trying to leave the property but Macy had his work files and keys, preventing him from doing so. The police dispatch records from March 4th, 2022, indicate that Plaintiff made several reports detailing Macy's threats and violent behavior. However, the officers on duty did not respond adequately to these calls, allowing Macy's harassment and property damage to continue unchecked (Exhibit 4).

3. **March 5, 2022: Escalation of Aggression**

44

On March 5, 2022, Macy's aggression escalated when she forcibly broke through the windows of Plaintiff's residence using a hammer and hose. She subsequently poured water and flour inside the home, causing significant damage to Plaintiff's belongings and rendering his electronics unusable. This act of violence was captured in photographs that clearly depict Macy attacking Plaintiff with a hammer and hose, providing undeniable evidence of her aggressive behavior and contradicting any claims that Plaintiff was the aggressor (Exhibits 19 & 20; Exhibit 21).

4. **March 6, 2022: Unlawful Arrest of Plaintiff**

45

On March 6, 2022, in response to the ongoing harassment and property damage reports, WLPD officers Dana Gunnarson and Catlin Blyth arrived at Plaintiff's residence. Within eight minutes of their arrival,

without conducting a thorough investigation or establishing probable cause, Officers Gunnarson and Blyth arrested Plaintiff on allegations of harassment. This swift arrest was conducted in a manner that lacked due diligence and relied heavily on biased and incomplete information, indicating a prejudiced approach to Plaintiff's detention (Exhibit 23).

46

For example, Plaintiff may have knocked on Macys windows, however it was specifically because she had pounded out all the windows, and the door, Plaintiff was soaking wet from the multiple hoses inside the house, Macy then cut the power, the heat, the internet, the lights, the Water, and it was in the low 20's and Plaintiff had every right to have the utilities left on. Moreover, WLPD with a Duty to intervene Did nothing, however they knew that Plaintiff was repeatedly getting attacked, they even left the gasoline with Macy as she remained screaming at everyone in the yard including the officers and stated in front of them that she was going to burn everything mean while her children look out the window from inside the house. Non of this was included in any of the reports to 'why' Plaintiff was knocking on the windows

5. **Bias in Investigation and Suppression of Evidence**

47

Officer Gunnarson's investigation report submitted to the court reveals significant bias and a lack of thoroughness. The report

misrepresented the events at Plaintiff's residence by omitting evidence of Macy's aggressive actions and instead portraying Plaintiff as the primary aggressor. Additionally, the Domestic Violence Assessment Surveys (Exhibit 5) indicate that Macy did not qualify as a victim of domestic violence, thereby undermining the legitimacy of the charges against Plaintiff. Despite photographic evidence showing Macy's violent behavior, the investigation report failed to acknowledge or include this critical exculpatory evidence (Exhibits 19 & 20; Exhibit 5; Exhibit 23).

6. **Macy's Continued Unreliable and Violent Behavior**

48

Macy's actions throughout the ordeal continued to undermine the case against Plaintiff. On March 6, 2022, Macy attacked Plaintiff with a hammer, prompting Plaintiff to defend himself, which was not accurately reflected in police reports. Furthermore, on March 7th, 2022, Macy was found in possession of methamphetamine during plaintiffs arraignment when she was caught entering the court house, severely discrediting her reliability as a witness and highlighting the manipulation of her testimony by state officials. These actions by Macy further demonstrate the lack of credible evidence against Plaintiff and the ongoing harassment he endured (Exhibit 2).

7. **Upon Arrest, the Officers bent every truth possible**

49

Once The Arrest began Plaintiff noticed that the officers were twisting his words, and through word spin the officers were looking for an arrest with inserting words like “only” or “at” where they instantly in a pre-practiced method when Plaintiff told the Officers that Plaintiff let Macy go and noticed her daughter, while being attacked with a hammer, she turned it around that [Plaintiff] “only “ let Macy go because he noticed her daughter; insinuating there was worse to come if she had not come… where in reality Plaintiff was in self-defense. Plaintiff told Officers that he woke up being attacked with keys on a lanyard by Macy and she had him blocked from leaving he had to “bear hug” her, she later used this as her second incident stating he ‘slammed her” when neither of such was remotely true.

50

. It doesn’t take a rocket scientist to note that someone doesn’t water their garden with work gloves, a hammer, with a wet basement when the prior two days that’s what happened, and on the side of the house with only sand on it. Or that someone doesn’t attack someone while home alone with them if they are scared of them. Officers’ actions were intentional.

51

Events like this followed Plaintiff throughout this time, such as being claimed to be high risk, a double felon, and violent, when Plaintiff did not even qualify for domestic violence on the survey Officer Dana Gunnarson took with Macy (See Exhibit 5), he wasn't a double felon and has never had a violent incident in his life, in-fact until this event, never had a single arrest in the state of Oregon; yet every step of the way, the Government Agents lied just a little bit, making the overall depiction of him to be unjustly altered. (See Exhibit 12 page 1 and 3) and then hid the evidence from being used as he was denied the body camera footage 14 times, blocking it with DHS seal. (See Exhibit 3 and Exhibit 8)

8. **Deputy District Attorney Portlock's Involvement and Malicious Prosecution**

52

Deputy District Attorney Rebecca Portlock, acting under color of state law, continued to prosecute the charges against Plaintiff despite the lack of probable cause. Even after Macy recanted her statements on June 24, 2022—admitting that Plaintiff had committed "no crimes"—DA Portlock persisted with the prosecution, demonstrating malice and an intent to unjustly detain Plaintiff. This continuation of charges in the face of clear exculpatory evidence exemplifies malicious prosecution and a disregard for Plaintiff's constitutional rights (Exhibit 2; Exhibit 34).

9. **Ineffective Assistance of Counsel and Withholding of Exculpatory Evidence**

53

Upon his arrest, Plaintiff was assigned counsel who failed to provide effective legal representation. His first appointed attorney withheld critical exculpatory evidence, including photographs depicting Macy's aggressive actions with a hammer and hose (See Exhibit 19 & Exhibit 20). These photographs were submitted by the police but never disclosed to Plaintiff, severely impairing his ability to defend himself against the fabricated charges. This failure to provide adequate legal representation constitutes ineffective assistance of counsel and further obstructs Plaintiff's pursuit of justice (Exhibits 2 & 3; Exhibit 5).

10. **Detention at Clackamas County Jail and Prolonged Incarceration**

54

Following his arrest, Plaintiff was detained at Clackamas County Jail. Although the court ordered his release on July 1, 2022, the jail continued to hold Plaintiff without legal justification, ultimately releasing him on July 8, 2022. This unlawful extension of detention resulted in significant hardship for Plaintiff, including emotional distress and financial instability. The delay in Plaintiff's release was not based on any new charges or legal reasons, highlighting systemic failures within the correctional facility (Exhibit 12).

11. **Destruction and Theft of Plaintiff's Property While in Custody**

55

During Plaintiff's detention, his property remained unattended and vulnerable to theft and further damage. Despite assurances from Officers Gunnarson and Blyth to secure Plaintiff's truck and belongings, the property was left unsecured. As a result, Plaintiff's tools, electronics, and other personal items were either stolen or destroyed. Items that remained were submerged in tubs of water, rendering them unusable, and his computers were either missing or irreparably damaged. This negligence and breach of trust by the jail staff further compounded Plaintiff's losses and hindered his ability to rebuild his life post-release (Exhibit 12; Exhibit 9).

12. **Denial of Medical Care and Access to Legal Resources in Jail**

56

While incarcerated, Plaintiff was denied necessary medical care, exacerbating his legal blindness. Requests for contact lenses and proper eyewear were ignored, and instead, he was told he can order readers with inadequate reading glasses with a +2.00 diopter prescription, which did not meet his visual needs as not only is that 1/6 his script, it's the wrong way (-11.00/-12.00).

57

Being blind a significant amount of time it made it nearly impossible to deal with Plaintiffs claims, he was being cheated by his own

attorney who would only make a deal or he was blind and the jail was exploiting it and denying him saline solution all but one or two little cups, and from Plaintiff attempting to use water, he ended up ending up with an eye infection just to read the computer screen in the law library.

58

A guard named Baker deleted 62 of Plaintiffs court files on June 20th at exactly 5:10 PM a guard named Baker intentionally went into Lofalls folders in the law library and deleted specifically only his files.

59

It can be assumed that someone had influenced that and the only one that someone would have been directly on their mind would have had to do with DA Rebecca Portlock who Plaintiff then told was going to be responsible for his losses and she just got caught lying to Judge Steele to about having covid and she still had no evidence nor witness…(see exhibit 1, Exhibit 12, and Exhibit 34)

60

Additionally, Plaintiff was denied access to the law library up to 9 days in a row, preventing him from preparing a defense or filing necessary legal documents in both his civil and criminal cases.

61

The jail staff, including Sergeant Heidi Wooster, systematically obstructed his access to legal resources, directly impacting his ability to defend himself (Exhibits 12 & 13; Exhibit 32); and cost him his Assignment of Benefits that he did the work for, and covered the costs out of his personal accounts, in full, valued at $111, 954.43, and then the same courts allowed him to be counter sued for another $32,599.50 while unable to defend his claims AND Clackamas county didn't let him revive his claims when he was released, on law he was except from and was irrelevant. Moreover was directly denied numerous ways as he took his claim to the supreme court in an attempt to revive it on appeal. (see Exhibit 9, Exhibit 10, Exhibit 11).

13. **False Claims and Delays in Trial Proceedings**

62

On June 10, 2022, Plaintiff was scheduled for trial and walked into the court dressed and ready for trial. The State unprepared they threw Plaintiff out of the court room "before the judge sees him" said Rebecca Portlock. DA Portlock and court-appointed advisor Rubin Medina falsely informed the court that Plaintiff had tested positive for COVID-19, a claim that was untrue. This misinformation led to the postponement of Plaintiff's trial by six weeks, and is a violation of Plaintiffs sixth Amendment right to counsel in a criminal proceeding due to now having two corrupt counsels defend him, moreover, further delaying justice and

denying Plaintiff a timely opportunity to defend himself. The transcript from June 10, 2022, reveals that this false claim was used to manipulate the court's schedule and delay proceedings, showcasing a deliberate attempt to obstruct justice (Exhibit 1).

14. **Macy's Recantation and Subsequent Rearrest of Plaintiff**

63

On June 24, 2022, Macy had gone to Mexico to avoid the corruption from the state, after Plaintiff had been rearrested for the same charges. She had her children leveraged over custody implying she would more freely have them returned if she made statements, that [simply were not true] however when Plaintiff had trial reset she returned from Mexico early and provided testimony recanting her previous statements. She admitted that Plaintiff had not committed any crimes and alleged that her initial accusations were manipulated by the state through coercion involving her children. Despite Macy's recantation, DA Portlock and Judge Steele refused to acknowledge her admission, leading to Plaintiff's rearrest on the same unfounded charges. This action underscores the systemic bias and corruption within the judicial system, where exculpatory evidence was ignored and manipulated to continue prosecuting Plaintiff (Exhibit 2; Exhibit 32).

15. **Systemic Judicial and State Misconduct**

64

Throughout Plaintiff's detention and legal proceedings, there was clear evidence of systemic misconduct by judiciary and state officials. The appointed attorney advisor not only failed to provide effective legal representation but also colluded with DA Portlock and Judge Steele to manipulate trial outcomes. This collusion included fabricating charges, suppressing exculpatory evidence, and obstructing Plaintiff's access to a fair trial, further violating his constitutional rights. The court transcripts and motions submitted by Plaintiff reveal a pattern of intentional delays and biased rulings that favored the Defendants over Plaintiff's pursuit of justice (Exhibit 1; Exhibit 3, and Exhibit 34).

16. **Plaintiff's Release and Continued Harassment**

65

Although the court ordered Plaintiff's release on July 1, 2022, he remained incarcerated until July 8, 2022, due to ongoing manipulation by state officials. During this period, Plaintiff was subjected to further hardships, including exposure to COVID-19 and hyperthermia, as well as the loss of his property and professional tools. The jail report indicated that Plaintiff was held for an additional week without lawful justification, exacerbating his emotional and financial distress (Exhibit 12).

17. **Repeated Denial of Discovery and Suppression of Evidence**

66

Plaintiff faced significant obstacles in accessing crucial evidence to support his defense. Despite filing for ineffective assistance of counsel, Plaintiff was denied access to discovery materials multiple times, with 14 denials while in jail. The DA and WLPD consistently suppressed exculpatory evidence, including body camera footage and other documentation that would have substantiated Plaintiff's claims of self-defense and highlighted the Defendants' misconduct. This systematic suppression of evidence severely hindered Plaintiff's ability to present a coherent and truthful defense (Exhibits 3; Exhibits 7 & 8; Exhibit 32).

67

Moreover, the largest issue here in total, is the fact that by the Defendants actions they have covered up each-others liabilities or attempted to do so. The WLPD Covered Danas misconduct with Misconduct, the DA Protected West Linn by forcing a c charge that didn't belong, Clackamas County attempted to lose Lofalls Files, and evidence, the Police Gave a car away of his and let his property get destroyed, multiple arrests that went unjustly, it was one big sham from arrest to release, Plaintiff was denied law Library, was forced to have Covid, he caused harm to friendships causing greater hardships once released, they tried to attack him in every way possible. Including taking his housing rights, his freedom, his petition the government, and every additional way they can lie and cause harm makes it harder to any win for plaintiff….. and it would surely benefit

Plaintiff in these matters had they not lied to hide the body camera footage, then they changed policy after Plaintiff filed because it was so obvious the court would have to arrest the officers under **18 U.S.C. 241, and 242.**

18. **Outcome of the Charges and Dismissal**

68

After spending 129 days in jail, the case against Plaintiff was dismissed the day before trial, without providing Plaintiff an opportunity to present his evidence and arguments. This dismissal further illustrates the systemic failures and the lengths to which state officials went to obstruct justice, effectively denying Plaintiff his day in court and violating his constitutional rights. The abrupt dismissal, coupled with the prior unwarranted delays and evidence suppression, underscores the lack of legitimate grounds for the charges initially brought against Plaintiff (Exhibit 14).

19. **Impact on Plaintiff's Life and Well-being**

69

The cumulative actions of the Defendants have had devastating effects on Plaintiff's life. As a result of the wrongful arrest, prolonged detention, and ongoing harassment, Plaintiff has suffered significant financial losses, property damage, emotional distress, and professional setbacks. The destruction of Plaintiff's property, including tools and electronics, has not only caused financial harm but has also

hindered his ability to work and maintain his livelihood. The loss of the Assignment of Benefits (AOB) valued at $111,943.56, coupled with a counter-suit for $32,599.50, has resulted in substantial financial instability, pushing Plaintiff towards homelessness and exacerbating his legal blindness (Exhibits 9, 21, & 24).

20. **Continued Legal Struggles and Systemic Barriers**

70

Despite numerous attempts to seek justice through both state and federal courts over the past four years, Plaintiff has been consistently thwarted by the Defendants' systematic efforts to deny him his constitutional rights. The collusion between DA Portlock, Judge Steele, and court-appointed advisors, coupled with ineffective legal representation, has perpetuated a cycle of injustice that has prevented Plaintiff his livelihood and caused catastrophic failures to his life. The courts denial in Justice, and holding Defendants accountable for their actions. The repeated delays, suppression of evidence, and biased rulings have further entrenched Plaintiff's inability to secure justice, highlighting the urgent need for federal intervention to rectify these systemic failures (Exhibit 1; Exhibit 34).

21. **July 1-8, 2022: Unlawful Extension of Detention and Final Release**

71

On July 1, 2022, the court ordered Plaintiff's release from Clackamas County Jail. However, due to ongoing manipulation and lack of

proper follow-through by the jail authorities, Plaintiff remained incarcerated until July 8, 2022. During this additional week, Plaintiff was subjected to further hardships, including exposure to COVID-19 and hyperthermia, as well as the continued destruction and theft of his property. The jail report documented that Plaintiff was held beyond the court-ordered release date without any lawful justification, further violating his rights and contributing to his deteriorating mental and physical health (Exhibit 12).

22. **Macy's Flight to Mexico and Return**

72

To avoid facing the consequences of her manipulated testimony and the ongoing corruption within the judicial system, Macy fled to Mexico before Plaintiff's trial. However, upon learning that DA Portlock had lied to secure additional delays, Macy returned to testify on June 24, 2022. During her hearing, Macy openly declared that she had been coerced and it can be heard that she was then by accusing Plaintiff exonerating her self and allowing grace in those who control her child's custody…and by her not doing so and wanting her children's custody to return its obvious the state was using that leverage to secure a verdict to shield liability where the states incorrect actions cost Plaintiff his freedom and livelihood.

73

None the less Macy recanted her earlier statements. This recantation not only exonerated Plaintiff but also exposed the extent of the DA's misconduct in attempting to obstruct justice (Exhibit 2).

23. **Final Summary of Systemic Failures and Rights Violations**

74

The series of events—from the initial harassment and property damage by Macy, through the unlawful arrest and prolonged detention of Plaintiff, to the systemic corruption and suppression of evidence by DA Portlock and Judge Steele—demonstrate a clear pattern of misconduct and constitutional violations. The Defendants' deliberate indifference to Plaintiff's rights, coupled with their actions to obstruct his legal defense and secure unjust charges, have resulted in severe personal and financial harm to Plaintiff. The ongoing denial of justice and failure to hold Defendants accountable necessitates immediate federal intervention to rectify these egregious violations and ensure that Plaintiff's constitutional rights are upheld (Exhibit 1; Exhibit 2; Exhibit 3; Exhibit 4; Exhibit 5; Exhibit 9; Exhibit 12; Exhibit 13; Exhibit 19; Exhibit 20; Exhibit 21; Exhibit 23; Exhibit 26; Exhibit 27; Exhibit 32; Exhibit 34).

24. **Conclusion of the Factual Background**

75

The events described above clearly demonstrate the Defendants' systematic efforts to unlawfully detain, harass, and deprive Plaintiff of his constitutional rights. From the initial false arrest and biased investigation to the prolonged and unjustified detention at Clackamas County Jail, the suppression of exculpatory evidence, and the collusion between DA Portlock and Judge Steele, each step of the process has been marred by misconduct and a blatant disregard for Plaintiff's rights. These actions have not only caused significant financial and emotional harm to Plaintiff but have also highlighted the urgent need for federal oversight to address and rectify these systemic failures (Exhibits 1; 2; 3; 4; 5; 9; 12; 13; 19; 20; 21; 23; 26; 27; 32; 34).

76

V. PROBABLE CAUSE AND QUALIFIED IMMUNITY

Argument to Defeat Qualified Immunity and Lack of Probable Cause (previously shut down West Linns request for judgement)

Introduction

77

Plaintiff, Tyler Allen Lofall, brings this argument to establish that the Defendants—West Linn Police Department (WLPD)

officers Dana Gunnarson and Catlin Blyth, Clackamas County Jail staff, and District Attorney Rebecca Portlock—violated clearly established constitutional rights. Through their actions, they engaged in an unlawful arrest, deliberately ignored exculpatory evidence, conspired to manipulate the legal process, and subjected Plaintiff to cruel and unusual punishment. The Defendants' claims to qualified immunity are invalid as they violated Plaintiff's Fourth, Fifth, Sixth, Seventh, and Fourteenth Amendment rights in a manner that no reasonable officer or prosecutor could believe was lawful.

Prosecutorial Immunity Does Not Apply

A. DEPUTY DISTRICT ATTORNEY REBECCA PORTLOCK VIOLATES THE TRUST OF THE PUBLIC AND THEREFORE IS NOT OWED ABSOLUTE IMMUNITY

Legal Basis:

78

Under **Imbler v. Pachtman**, 424 U.S. 409 (1976), prosecutors have absolute immunity for activities intimately associated with the judicial phase of the criminal process.

79

However, when a prosecutor performs administrative or investigative functions, or acts outside their role as an advocate, they are entitled only to qualified immunity. See **Buckley v. Fitzsimmons**, 509 U.S. 259 (1993).

Allegations:

80

Acting Outside Scope of Advocacy: Deputy District Attorney Rebecca Portlock engaged in actions outside her role as an advocate by knowingly presenting false information to the court, colluding with court-appointed advisors, and manipulating legal proceedings.

81

Lying to the Court: DA Portlock falsely claimed that the Plaintiff tested positive for COVID-19 to delay the trial (Exhibit 1), which is an administrative act not protected by absolute immunity.

82

Coercion and Fabrication: Engaged in coercing witnesses and fabricating evidence, which are investigative functions beyond prosecutorial duties.

1. **Conclusion:**

83

Because DA Portlock acted outside the scope of her prosecutorial duties and engaged in conduct that violated clearly established constitutional rights, she is not entitled to absolute prosecutorial immunity.

84

Therefore, DA Portlock can be held liable under **42 U.S.C. § 1983** for her actions that deprived the Plaintiff of constitutional rights.

B. Violation of Clearly Established Constitutional Rights

A. Unlawful Arrest and Lack of Investigation

85

On March 6, 2022, Plaintiff was unlawfully arrested by Officers Dana Gunnarson and Catlin Blyth within eight minutes of their arrival at the scene. During this brief period, the officers failed to conduct any meaningful investigation or question Plaintiff. Instead, they relied on the manipulated account provided by Macy, despite her erratic behavior and known mental instability. No reasonable officer would have believed that arresting Plaintiff based on such unreliable information was lawful, especially given the presence of exculpatory evidence, including witness statements and video evidence showing Macy as the aggressor.

86

The rushed arrest, absence of an investigation, and the failure to question Plaintiff are clear violations of the Fourth Amendment's protections against unreasonable seizures. The officers' failure to obtain probable cause before making the arrest is further demonstrated by their refusal to document key evidence that could have exonerated Plaintiff.

B. Ignoring Exculpatory Evidence

87

Defendants acted with deliberate bias in presenting the facts of the case. Despite multiple reports of Macy's violent behavior, including an attack with a hammer and repeated property destruction, the WLPD allowed Macy to remain at the scene and continue her assaults on Plaintiff for three days in a row. The officers failed to document these incidents or take any protective actions against Macy, showing clear favoritism.

88

Furthermore, the loss of body camera footage, which would have provided critical evidence in favor of Plaintiff, suggests deliberate manipulation or negligence. This suppression of evidence violated Plaintiff's due process rights under the Fourteenth Amendment and constitutes malicious intent by Defendants to deprive Plaintiff of a fair defense.

C. Collusion Between the DA and Attorneys

89

The District Attorney's Office, led by DA Rebecca Portlock, engaged in collusion with Plaintiff's court-appointed attorneys, conspiring to withhold evidence and manipulate the judicial process. This collusion is evident in the June 24, 2022 transcript, where Macy, the state's key witness, recanted her testimony and accused the DA of lying about key facts in the case. Macy stated on the record that she never wanted to press charges and that the allegations against Plaintiff were based on half-truths fabricated by the DA.

90

Further evidence of collusion is found in the DA's false statements to the court that Plaintiff had tested positive for COVID-19. The DA and Plaintiff's attorneys deliberately removed Plaintiff from the courtroom, lied to the judge, and canceled the trial based on fabricated health concerns. This act of manipulation violated Plaintiff's constitutional right to be present during his trial and to confront witnesses, further undermining the credibility of the charges against him. (See Exhibit 1 and Exhibit 2).

91

The state can't force the infection of a pandemic virus and lie to a judge about both being prepared for trial and a defendant having

Covid while Colluding with a Pro Se Litigants forced Appointed Advisor and get caught doing it and expect Immunity.

92

D. *No reasonable prosecutor or attorney could believe that such manipulation and deceit in a criminal case is lawful. The DA's actions, in concert with Plaintiff's attorneys, represent a clear violation of* Plaintiff's Sixth Amendment rights to a fair trial.

Lack of Probable Cause

93

Probable cause requires that officers possess sufficient evidence to believe that a crime has been committed. In Plaintiff's case, there was no credible evidence to support the harassment charges for which he was arrested.

Moreover, the Officers looked it up in front of Plaintiff and plaintiff was right, yet instead of letting him go, the conspired to "cone up with another incident". The officers relied solely on the statements of Macy, a witness with a documented history of mental instability, drug use (she was caught with methamphetamine in court the following day), and violent outbursts. Furthermore, Macy's recantation in court made it clear that she did not believe Plaintiff had committed any crime.

94

Macy's testimony was unreliable from the start, and the officers' refusal to consider other evidence, such as video footage of Macy destroying property, further illustrates that they lacked probable cause to arrest Plaintiff. The selective use of facts and deliberate omissions in the police reports demonstrate that the officers acted with malicious intent, fabricating charges to justify an unlawful arrest.

E. Municipal *Liability*

95

West Linn Police Department and Clackamas County are liable under Monell because their actions were part of a broader policy or custom of deliberate indifference to constitutional violations. The officers and jail staff involved in Plaintiff's case acted in accordance with this policy of ignoring complaints, failing to investigate thoroughly, and suppressing evidence. Their failure to protect Plaintiff's rights was not an isolated incident but rather part of a systemic failure to train and supervise employees adequately.

F. Conclusion

96

Defendants' actions cannot be shielded by qualified immunity because they violated clearly established constitutional rights that no reasonable officer or prosecutor could have believed were lawful. The

unlawful arrest, suppression of exculpatory evidence, collusion in the courtroom, and deliberate indifference to Plaintiff's health and legal rights all point to a gross abuse of power. Furthermore, the absence of probable cause and the manipulation of legal proceedings show that the Defendants acted with malicious intent, not in good faith.

97

West Linn Police Department and Clackamas County are also liable under Monell for their failure to train officers and maintain policies that protect the constitutional rights of individuals under their jurisdiction. Plaintiff's rights were systematically violated by Defendants, and they must be held accountable for the harm caused.

98

Plaintiff respectfully requests that this Court deny Defendants' claims of qualified immunity and find that there was no probable cause to justify Plaintiff's arrest and detention.

99

VI. CLAUSES OF ACTION

First Cause of Action: Unlawful Arrest/False Arrest (Fourth Amendment Violation)

Defendants Responsible:

West Linn Police Department
Officer Dana Gunnarson
Officer Catlin Blyth

Legal Basis:

42 U.S.C. § 1983
Fourth Amendment to the U.S. Constitution

Elements:

(1) Intentional confinement of the plaintiff by the defendant.

(2) Plaintiff was conscious of the confinement.

(3) Plaintiff did not consent to the confinement.

(4) The confinement was not otherwise privileged (i.e., lacked probable cause).

Allegations:

100

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

101

On March 6, 2022, Defendants, acting under color of state law, intentionally arrested and confined Plaintiff without probable cause, violating his rights under the Fourth Amendment.

102

Defendants Gunnarson and Blyth arrived at Plaintiff's residence and arrested him within eight minutes, without conducting a thorough investigation or establishing probable cause.

103

Defendants ignored clear evidence that Macy was the aggressor, including reports of her violent behavior, property destruction, and threats to Plaintiff's safety.

104

Defendants manipulated Plaintiff's statements and omitted exculpatory evidence, relying solely on the unreliable and manipulated account provided by Macy.

105

Plaintiff was aware of his confinement and did not consent to it.

106

The arrest and detention of Plaintiff were not privileged or justified, as there was no probable cause to believe that Plaintiff had committed a crime.

107

As a result of Defendants' unlawful arrest, Plaintiff suffered loss of liberty, emotional distress, reputational harm, and financial damages.

108

Second Cause of Action: Malicious Prosecution (Fourth and Fourteenth Amendments Violation)

Defendants Responsible:

West Linn Police Department
Officer Dana Gunnarson
Officer Catlin Blyth
Deputy District Attorney Rebecca Portlock

Legal Basis:

42 U.S.C. § 1983
Fourth and Fourteenth Amendments to the U.S. Constitution

Elements:

(1) Defendants initiated or continued criminal proceedings against Plaintiff.

(2) The proceedings terminated in Plaintiff's favor.

(3) There was no probable cause for the proceedings.

(4) Defendants acted with malice.

(5) Plaintiff suffered a deprivation of liberty consistent with the concept of seizure as a consequence of the legal proceedings.

Allegations:

109

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

110

Defendants initiated and continued criminal proceedings against Plaintiff without probable cause.

111

Despite Macy's recantation and admission that Plaintiff committed no crimes, Defendants, including DA Portlock, continued the prosecution.

112

The proceedings terminated in Plaintiff's favor when the charges were dismissed after 129 days of unlawful detention.

113

Defendants acted with malice, fabricating evidence, suppressing exculpatory evidence, and manipulating the legal process to unjustly prosecute Plaintiff.

114

Plaintiff suffered significant deprivation of liberty, emotional distress, and financial harm as a result of Defendants' malicious prosecution.

Third Cause of Action: Conspiracy to Violate Civil Rights (42 U.S.C. § 1983)

Defendants Responsible:

West Linn Police Department
Officer Dana Gunnarson
Officer Catlin Blyth
Deputy District Attorney Rebecca Portlock
Judge Steele
Court-Appointed Advisor Rubin Medina

Legal Basis:

42 U.S.C. § 1983
Fourth, Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution

Elements:

(1) An agreement between two or more persons to deprive Plaintiff of constitutional rights.

(2) An overt act in furtherance of the conspiracy.

(3) A constitutional injury resulting from the overt act.

Allegations:

115

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

116

Defendants conspired to deprive Plaintiff of his constitutional rights by fabricating charges, suppressing exculpatory evidence, and manipulating the judicial process.

117

Defendants, including DA Portlock, Judge Steele, and court-appointed advisor Rubin Medina, colluded to delay Plaintiff's trial and obstruct justice, including falsely claiming Plaintiff had COVID-19 to postpone the trial (Exhibit 1).

118

Defendants acted in concert to suppress evidence favorable to Plaintiff, including withholding body camera footage (Exhibit 8) and deleting Plaintiff's legal files while in jail (Exhibit 13).

119

Defendants' overt acts in furtherance of the conspiracy included fabricating evidence, making false statements to the court, and denying Plaintiff access to legal resources.

120

As a result of the conspiracy, Plaintiff suffered violations of his rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments, including unlawful arrest, denial of due process, denial of the right to counsel, and prolonged detention without trial.

Fourth Cause of Action: Failure to Protect/Failure to Prevent Harm (Fourteenth Amendment Violation)

Defendants Responsible:

West Linn Police Department
Officer Dana Gunnarson
Officer Catlin Blyth

Legal Basis:

42 U.S.C. § 1983
Fourteenth Amendment to the U.S. Constitution

Elements:

(1) Defendants were aware of a substantial risk of serious harm to Plaintiff.

(2) Defendants disregarded that risk by failing to take reasonable measures to abate it.

(3) Plaintiff suffered harm as a result.

Allegations:

121

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

122

Defendants were aware of the substantial risk of harm to Plaintiff, as he reported multiple times that Macy was engaging in violent behavior, property destruction, and threats, including threats to burn down the house (Exhibit 4).

123

Defendants failed to take reasonable measures to protect Plaintiff, including failing to arrest Macy or intervene to prevent further harm.

124

As a result of Defendants' failure to protect, Plaintiff suffered property damage, personal injury, emotional distress, and was ultimately unlawfully arrested.

Fifth Cause of Action: Cruel and Unusual Punishment (Fourteenth Amendments Violation)

Defendants Responsible:

Clackamas County Jail
Clackamas County Sheriff's Office
Jail Staff (including Sergeant Heidi Wooster and Guard Baker)

Legal Basis:

42 U.S.C. § 1983
Fourteenth Amendments to the U.S. Constitution

Elements:

(1) Plaintiff had serious medical needs.

(2) Defendants knew of and disregarded an excessive risk to Plaintiff's health or safety.

(3) Defendants' conduct amounted to deliberate indifference.

Allegations:

125

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

126

While detained, Plaintiff was denied necessary medical care, including access to his corrective lenses, leaving him effectively blind (Exhibit 12).

127

Defendants exposed Plaintiff to COVID-19 by housing him with infected inmates, resulting in Plaintiff contracting the virus (Exhibit 12).

128

Defendants denied Plaintiff access to adequate medical treatment and failed to protect him from known health hazards, demonstrating deliberate indifference to his serious medical needs.

129

Defendants' actions caused Plaintiff physical pain, suffering, and exacerbated his pre-existing medical conditions.

Sixth Cause of Action: False Imprisonment (Fourth and Fourteenth Amendments Violation)

Defendants Responsible:

Clackamas County Jail
Clackamas County Sheriff's Office

Jail Staff

Legal Basis:

42 U.S.C. § 1983
Fourth and Fourteenth Amendments to the U.S. Constitution

Elements:

(1) Defendants intended to confine Plaintiff.

(2) Plaintiff was conscious of the confinement.

(3) Plaintiff did not consent to the confinement.

(4) The confinement was not otherwise privileged (i.e., Plaintiff was held without legal justification).

Allegations:

130

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

131

On July 1, 2022, the court ordered Plaintiff's release from custody.

132

Defendants, acting under color of state law, unlawfully continued to confine Plaintiff until July 8, 2022, without any legal justification (Exhibit 12).

133

Plaintiff was aware of his continued confinement and did not consent to it.

134

Defendants' continued detention of Plaintiff was not privileged, as there was no legal basis to hold him beyond the court-ordered release date.

135

As a result of Defendants' actions, Plaintiff suffered loss of liberty, emotional distress, and financial harm.

Seventh Cause of Action: Deliberate Indifference to Medical Needs (Fourteenth Amendments Violation)

Defendants Responsible:

Clackamas County Jail
Clackamas County Sheriff's Office
Jail Staff (including Sergeant Heidi Wooster and Guard Baker)

Legal Basis:

42 U.S.C. § 1983
Fourteenth Amendments to the U.S. Constitution

Elements:

(1) Plaintiff had a serious medical need.

(2) Defendants knew of the serious medical need.

(3) Defendants acted with deliberate indifference to that need.

Allegations:

136

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

137

Plaintiff is legally blind with prescriptions of -11.00 and -12.00 diopters and requires corrective lenses (Exhibit 12).

138

Defendants were aware of Plaintiff's serious medical need for corrective lenses but denied him access, leaving him effectively blind during his detention.

139

Defendants' deliberate indifference to Plaintiff's medical needs caused him significant hardship, including inability to read legal documents, prepare his defense, and perform basic tasks.

140

Defendants' actions violated Plaintiff's rights under the Fourteenth Amendments.

Eighth Cause of Action: Intentional Interference with Contractual Relations

Defendants Responsible:

Clackamas County Jail
Clackamas County Sheriff's Office
Jail Staff (including Sergeant Heidi Wooster and Guard Baker)

Legal Basis:

Common law tort of intentional interference with contractual relations

Elements:

(1) Existence of a valid contractual relationship or business expectancy.

(2) Defendants' knowledge of the relationship or expectancy.

(3) Intentional interference by Defendants inducing or causing a breach or termination of the relationship or expectancy.

(4) Resultant damage to Plaintiff.

Allegations:

141

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

142

Plaintiff had a valid contractual relationship in the form of an Assignment of Benefits (AOB) valued at $111,943.56 (Exhibit 9).

143

Defendants were aware of Plaintiff's contractual relationship and his need to access legal resources to protect his contractual rights (Exhibit 33).

144

Defendants intentionally interfered with Plaintiff's contractual relationship by denying him access to the law library, deleting his legal files, and obstructing his ability to attend legal proceedings, causing the forfeiture of the AOB (Exhibits 12 & 13).

145

As a result of Defendants' intentional interference, Plaintiff suffered significant financial loss and damage.

Ninth Cause of Action: Monell Claim – Failure to Train and Official Custom of Deliberate Indifference

Defendants Responsible:

Clackamas County
West Linn Police Department

Legal Basis:

42 U.S.C. § 1983
Monell v. Department of Social Services, 436 U.S. 658 (1978)

Elements:

(1) Existence of a policy, practice, or custom by the municipality.

(2) The policy, practice, or custom amounts to deliberate indifference to constitutional rights.

(3) The policy, practice, or custom was the moving force behind the constitutional violation.

Allegations:

146

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

147

Defendants Clackamas County and West Linn Police Department, through their policymakers, maintained policies, practices, or customs that were deliberately indifferent to the constitutional rights of individuals, including Plaintiff.

148

Defendants failed to properly train and supervise their officers and staff regarding proper arrest procedures, investigation techniques, handling of exculpatory evidence, detainee medical care, and detainee access to legal resources (Exhibits 26 & 27).

149

The failure to train and supervise amounted to deliberate indifference to the rights of individuals, as the need for more or different training was obvious and the inadequacy likely to result in constitutional violations.

150

Defendants' policies, practices, or customs were the moving force behind the violations of Plaintiff's constitutional rights, including unlawful

arrest, malicious prosecution, denial of medical care, and prolonged unlawful detention.

151

As a result of Defendants' actions and omissions, Plaintiff suffered significant harm, including loss of liberty, emotional distress, financial damages, and violation of his constitutional rights.

Tenth Cause of Action: Denial of Right to Civil Jury Trial (Seventh Amendment Violation)

Defendants Responsible:

Clackamas County
West Linn Police Department
Clackamas County Circuit Court
Judge Steele
Deputy District Attorney Rebecca Portlock

Legal Basis:

42 U.S.C. § 1983
Seventh Amendment to the U.S. Constitution

Elements:

(1) Plaintiff had a right to a civil jury trial under the Seventh Amendment.

(2) Defendants interfered with or denied Plaintiff's right to a civil jury trial.

(3) Plaintiff suffered harm as a result.

Allegations:

152

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

153

Plaintiff had a right under the Seventh Amendment to a civil jury trial in his civil claims.

154

Defendants, acting under color of state law, interfered with and denied Plaintiff's right to a civil jury trial by obstructing his access to the courts, denying him access to legal resources, suppressing evidence, and manipulating court proceedings to prevent his civil claims from being heard by a jury.

155

Defendants' actions, including collusion to delay trial, suppression of exculpatory evidence, and denial of access to legal resources, effectively prevented Plaintiff from pursuing his civil claims and having them adjudicated by a jury.

156

As a result of Defendants' denial of his Seventh Amendment rights, Plaintiff suffered harm, including loss of opportunity to seek redress for his grievances, emotional distress, and financial damages.

Eleventh Cause of Action: Violation of Right to Due Process (Fifth and Fourteenth Amendments)

Defendants Responsible:

West Linn Police Department
Officer Dana Gunnarson
Officer Catlin Blyth
Clackamas County
Clackamas County Sheriff's Office
Jail Staff
Deputy District Attorney Rebecca Portlock
Judge Steele
Court-Appointed Advisor Rubin Medina

Legal Basis:

42 U.S.C. § 1983
Fifth and Fourteenth Amendments to the U.S. Constitution

Elements:

(1) Defendants acted under color of state law.

(2) Defendants deprived Plaintiff of a protected liberty or property interest.

(3) The deprivation occurred without due process of law.

Allegations:

157

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

158

Defendants, acting under color of state law, deprived Plaintiff of his liberty and property without due process of law.

159

Defendants suppressed exculpatory evidence, denied Plaintiff access to legal resources, manipulated court proceedings, and unlawfully detained Plaintiff beyond his release date, depriving him of due process.

160

Defendants' actions resulted in the deprivation of Plaintiff's liberty interests, including his freedom from unlawful detention, and property interests, including his contractual rights and personal property.

161

As a result of Defendants' violations of Plaintiff's due process rights, Plaintiff suffered significant harm, including loss of liberty, emotional distress, financial damages, and violation of his constitutional rights.

Twelfth Cause of Action: Violation of Right to Counsel and Fair Trial (Sixth Amendment Violation)

Defendants Responsible:

Deputy District Attorney Rebecca Portlock
Clackamas County

Legal Basis:

42 U.S.C. § 1983
Sixth Amendment to the U.S. Constitution

Elements:

(1) Defendants interfered with Plaintiff's right to the assistance of counsel.

(2) Defendants interfered with Plaintiff's right to a fair and speedy trial.

(3) Plaintiff suffered harm as a result.

Allegations:

162

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

163

Defendants interfered with Plaintiff's Sixth Amendment rights by colluding to delay his trial, falsely claiming he had COVID-19 to postpone proceedings, and denying him effective assistance of counsel.

164

Plaintiff's first appointed counsel withheld exculpatory evidence, and his second court-appointed advisor colluded with the DA and Judge to manipulate trial dates and proceedings.

165

Defendants' actions deprived Plaintiff of his right to a fair and speedy trial and effective assistance of counsel, resulting in prolonged unlawful detention and inability to adequately defend himself.

166

As a result, Plaintiff suffered significant harm, including loss of liberty, emotional distress, and violation of his constitutional rights.

VII. CONSTITUTIONAL PROVISIONS

CONSTITUTIONAL PROVISIONS

167

Fourth Amendment: The Fourth Amendment guarantees protection from **unreasonable searches and seizures**. The unlawful seizure of the vehicle in Plaintiff's possession, without probable cause or proper legal justification, constitutes a violation of Plaintiff's Fourth Amendment rights. Additionally, Plaintiff's subsequent arrest and imprisonment were unsupported by probable cause, further violating these protections.

168

Fifth and Fourteenth Amendments: **Under the Due Process Clause of the Fifth and Fourteenth Amendments, Plaintiff is entitled to fair legal proceedings before being deprived of life, liberty, or property.** The systemic corruption within Clackamas County, the failure of law enforcement officers to respond to legal filings, and the subsequent rulings in favor of Defendants, despite the lack of legal merit, demonstrate a blatant disregard for Plaintiff's due process rights. Plaintiff was denied the opportunity to properly defend against false charges and hold the Defendants accountable, and the courts have consistently disregarded Plaintiff's filings in violation of constitutional guarantees of procedural fairness.

169

Sixth Amendment: Plaintiff was deprived of the right to a have counsel defend him fairly and vigorously, which is a fundamental protection under the Sixth Amendment. Instead **Plaintiffs first Appointed Counsel withheld exculpatory evidence,** and his second appointed 'advisor' the court made him take conspired with the judge and DA and **knowingly lied about his Covid Status in order to get another set over leaving him in jail for 6 more weeks**, despite the States only witness claiming Lofall "has committed no crimes" has been systematically denied access to a fair trial. This repeated denial of Plaintiff's right to be heard in court, despite ample evidence of wrongdoing, violates the very essence of the Sixth Amendment.

170

Seventh Amendment: The Seventh Amendment guarantees the right to a jury trial in civil cases. Despite Plaintiff's continuous efforts to present his claims, **the courts have failed to ensure Plaintiff's right to a jury trial**. Plaintiff has not been afforded the opportunity to have his claims heard by a jury, despite the extensive legal filings and clear evidence of judicial misconduct and corruption in the handling of his case.

171

Fourteenth Amendment: Plaintiff was subjected to cruel and unusual punishment while detained, in violation of the Fourteenth Amendment. **Plaintiff was deliberately placed in a cell with a COVID-positive individual, resulting in Plaintiff contracting the virus**. This reckless and punitive action, coupled with the inhumane treatment while incarcerated, directly infringes upon Plaintiff's Amendment protections.

172

Equal Protection Clause (Fourteenth Amendment): Plaintiff has been systematically denied equal protection under the law, as guaranteed by the Equal Protection Clause of the Fourteenth Amendment. The courts have consistently ruled against Plaintiff, regardless of the merits of his claims, and have failed to hold law enforcement and other governmental entities accountable for their violations. The state's immunity doctrines have been abused to shield individuals from accountability, denying Plaintiff justice and fair treatment. **District Attorney Rebecca Portlock even got Immunity for actions where she colluded with Plaintiffs Counsel and lied in Court to the Judge because she was not read for trial on trial day af Lofall had spent going on 4 months in jail June 10th 2022.**

SYSTEMIC CORRUPTION AND DENIAL OF RIGHTS

173

Plaintiff asserts that the conduct of Clackamas County, its law enforcement officers, the District Attorney's office, and the judiciary reflect a deliberate and concerted effort to undermine Plaintiff's constitutional rights. This is evidenced by the following:

174

Failure to Respond to Legal Filings:, Clackamas County was served **three separate times in State Court** Through the Jail and police Sherriffs office, and they failed to acknowledge the fact, Plaintiff served the . This non-responsiveness demonstrates a blatant disregard for legal obligations and Plaintiff's rights under the law.

175

Judicial Bias and Collusion: Plaintiff's legal arguments against Defendant William Stabler were valid and well-supported, yet the court ruled in favor of the Defendant, disregarding the law and Plaintiff's rights. In addition, Plaintiff contends that the District Attorney responded to an entirely different legal filing than the one at issue, yet still won the ruling. Such judicial conduct, particularly as documented in the court transcripts from June 10, 2022, evidences bias and corruption within Clackamas County's legal system.

176

Perjury and Manipulation of Legal Proceedings: In case number 21cv02575, Defendants committed perjury, knowingly submitting false statements to the court while Plaintiff was falsely incarcerated. Despite over 75 filings by Plaintiff attempting to revive his claims, the courts have refused to correct these errors, and the Oregon State Bar (OSB) and federal court system have failed to intervene, allowing the corruption to persist unchecked.

FEDERAL INTERVENTION REQUIRED

177

Plaintiff invokes 18 U.S.C. §§ 240-241, which explicitly prohibits conspiracies to interfere with civil rights and protects individuals from the deprivation of constitutional rights. Under this statute, federal courts are empowered to intervene when state or local actors conspire to deprive individuals of their constitutional protections.

178

By continuing to shield Defendants under doctrines of immunity and procedural technicalities, the federal court is effectively enabling these unconstitutional actions. Plaintiff has been repeatedly denied justice, and the federal court must step in to protect Plaintiff's rights under the law. Failure to act would constitute complicity in the violations occurring at the state and county levels.

179

The pervasive nature of the misconduct and corruption, as documented in transcripts and legal filings, demonstrates that these actions are not isolated incidents. They are part of a broader pattern of disregard for Plaintiff's constitutional rights, and federal intervention is necessary to restore the integrity of the legal process.

VIII. PRAYER FOR RELIEF

180

Plaintiff respectfully requests that the federal court intervene and provide the following relief:

181

A declaration that the actions of Defendants, including the Clackamas County Sheriff's Office, the District Attorney's Office, and the judiciary, violated Plaintiff's constitutional rights under the Fourth, Fifth, Sixth, Seventh, and Fourteenth Amendments.

182

An order appointing a special master or federal oversight to ensure that Plaintiff's remaining legal claims are properly adjudicated and that further constitutional violations are prevented.

183

An injunction preventing further judicial bias, manipulation, or retaliation against Plaintiff for exercising his legal rights.

184

Any additional relief the Court deems just and proper, including compensatory and punitive damages.

IX. PERSONAL IMPACT

185

The toll of being homeless is devastating on every level—financially, emotionally, physically, and mentally. When I lost my home, I lost not just a place to sleep, but my stability, my peace of mind, and the life I had worked so hard to build. My car, which became my only shelter, was pillaged. Everything I once owned, everything I depended on, was slowly stripped away from me. It's a daily battle to survive when you have to fight for every dollar while being completely broke, trying to defend yourself and keep your claim alive. Years of income, security, and self-respect vanished, leaving me in a constant state of desperation.

186

Being forced to choose between staying on the streets and trying to hustle enough money to survive, or learning the law on my own just to fight for what is rightfully mine, has been a grueling challenge. The very tools that I need to fight back, like my computer, have become my lifeline. At times, I've had to pull a weapon just to protect it, because without it, I have nothing. My health has deteriorated because of this relentless struggle. The lack of proper nutrition, medical care, and the constant stress have worn me down. Relationships I once cherished have frayed, torn apart by the strain of living a life of survival.

187

The daily grind of homelessness is brutal. Simple things like finding a bathroom before stores close or just trying to clean up so I'm not treated like a problem become major challenges. People look at you like you're a criminal everywhere you go, just because you're dirty and homeless. I'm constantly being accused of stealing, constantly being watched as if my mere existence is an offense. But despite this, I've fought hard to keep my morals intact, to not lose myself in the chaos. However, I've had to be more aggressive, more pushy, because in this situation, you don't have a choice. And where has that left me? Arrested, falsely accused, and beaten down by a system that's supposed to protect, not profile, me.

188

It started with a jealous friend who attacked me and wanted to take what was mine. Instead of investigating properly, the police took less than eight minutes to arrest me. They didn't even bother to question me. They sided with the aggressor, Macy, leaving me vulnerable for three days in a row as she attacked me again and again. The police ignored her erratic behavior, the body camera footage mysteriously vanished, and they painted me as the problem without ever seeking the truth.

189

The bias was clear from the beginning—not just from the police, but from the courts. The entire system was stacked against me, and it felt like a losing battle from the start. I once had a 4.4 GPA in high school, a 4.0 in college, and was making over $100,000 a year for many years. But now, I'm scraping by, trying to survive on a few thousand a year, while fighting tooth and nail just to keep my claim alive. The disparity between who I was and what I've been reduced to is staggering, and the pain of losing everything I worked for is indescribable.

190

Surrounded by others who are in survival mode, I've seen firsthand how people will do anything—fight, cheat, steal—just to make it through another day. When you're backed into a corner with no options,

survival instincts kick in. And that's what the police ignored. They didn't see a man who was fighting for his life, they saw someone they could easily profile. They spent eight minutes on my case and decided I was guilty. They knew they were in the wrong. They didn't follow the law, and they didn't care. They saw me through the lens of a prior incident, one where I had already been profiled by a different officer, and they used that as a justification to treat me as less than human.

191

The truth is, Macy knew I wasn't the one who hurt her. She bailed me out of jail. She went to Mexico and came back, calling my family and telling them that the government wasn't playing fair. She knew the system was manipulating her, leveraging her kids over her son. She came to court and told the DA that they were lying, that they were telling half-truths. Macy admitted that the charges against me were false, and yet the DA continued to pursue them. They removed me from the courtroom to lie behind my back, fabricating stories about COVID, and trying to undermine me at every turn.

192

The lies were caught on tape. The transcripts prove that the DA, the police, and even my own attorneys colluded against me. They were the two-faced liars, not me. Every single person I faced lied in some way to

harm me, thinking it would better their situation or protect their narrative. I never lied—not once. But in return, I've been dragged through the mud, my rights trampled on, and everything I love taken from me.

The worst part isn't just that they lied—it's that the government, the system that's supposed to protect constitutional rights, allowed this to happen. These government employees broke the law—federal law—and they should be held accountable. 18 U.S.C. 241 and 242, along with 1001, make it clear that what they did was illegal. Yet I'm the one suffering the consequences. They took everything from me, and the state protects them with procedural rules, placing them above the Constitution. This is why we're one of the highest crime countries in the world—because the judicial branch enables this injustice to continue.

193

My 4.0 GPA was in psychology, and I wrote a research paper on this exact issue—how over-policing and [sexual] suppression leads to crime, teaches people to be sneaky, hide things…. The first time your forced to do it… it's a big deal, the 100th time its not so much of a big deal… The system isn't helping—it's hindering people's lives. If the state takes everything from me here, it's on them. The only thing worse than losing everything is the people who allow it to happen—the ones who govern it and let it continue… moreover, what happens if after 150 filings and being

ran through the mud when the guy in my position gets his claims unjustly dismissed because the ones judging it, are corruptly sneaking away from their own liability?... [just walk away? Ive lost everything in my life… I'm just going to be honest not say…nothing]

Tyler -

CONCLUSION

194

As a direct and proximate result of the Defendants' actions, Plaintiff has suffered damages including, but not limited to, loss of liberty, emotional distress, financial losses, property damage, and violation of constitutional rights.

X. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

(1) Enter judgment in favor of Plaintiff and against Defendants on all causes of action.

(2) Award compensatory damages in an amount to be determined at trial.

(3) Award punitive damages against individual Defendants for their willful, malicious, and reckless conduct.

(4) Award fees and costs pursuant to a substitute for attorney fees pursuant to 42 U.S.C. § 1988 and any other applicable provisions.

(5) Grant injunctive relief as appropriate to prevent further violations of Plaintiff's rights.[1]

(6) Grant such other and further relief as the Court deems just and proper.

195

Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

196

XI. DAMAGES

Damages Breakdown by Defendants

1. **Clackamas County and Jail Officials**
   Total: $TBD BY TRIAL

   - **Loss of Assignment of Benefits (AOB)**: $111,943.56
     The county's failure to protect Plaintiff's rights resulted in the financial loss of the AOB.

[1] Plaintiff respectfully requests that the Court compel the defendants to produce all relevant body camera footage and any other withheld evidence pertinent to this case.This footage would end the claim instantly… they have hidden it, lied about it, and it's the simplest way to end everything. And under 18 U.S.C. 241, 242, and 1001 they should be liable for hiding it and all those involved should be charged.

- **Loss of Counterclaim**: $32,599.50
  The manipulation of court schedules and unlawful dismissal caused this financial loss.

- **Destruction of Property (tools, electronics, work files)**: $TBD By Trial
  Property was lost or damaged during Plaintiff's detention and while in Clackamas County Jail.

- **Emotional Distress**: $TBD by trial
  The prolonged detention, exposure to unsafe conditions, and the mental trauma caused by the county's actions resulted in significant emotional distress.

- **Legal Costs and Missed Professional Opportunities**: $TBD by Trial
  Due to procedural delays, Plaintiff incurred substantial legal costs and lost business opportunities.

- **Punitive Damages**: $TBD by trial
  Punitive damages for Clackamas County's reckless disregard of Plaintiff's rights, unlawful actions, and overall complicity in allowing these harms to persist.

---

2. **West Linn Jail and Officers (Catlin Blyth & Dana Gunnarson)**
   Total: $TBD BY TRIAL

   - **Destruction of Property**: $TBD by trial
     The actions of the West Linn Jail contributed to the loss of Plaintiff's property.

- **Emotional Distress**: $TBD by Trial
  The unlawful detention, compounded by the actions of West Linn Jail officials and officers, resulted in severe emotional distress.

- **Loss of Reputation/Professional Harm**: $TBD by Trial
  The reputational damage and professional harm caused by the actions of the officers, including their role in Plaintiff's unlawful detention and the vehicle incident.

- **Punitive Damages**: $TBD by Trial
  Punitive damages against the officers for their reckless disregard of Plaintiff's rights, particularly in relation to the vehicle incident and unlawful detention.

Summary of Damages

- **Clackamas County and Jail Officials**: $TBD By TRIAL
- **West Linn Jail and Officers**: $TBD By TRIAL

- **Total Damages Sought**: **$2,490,000.00**

XII. DEFENDANTS AND CAUSES OF ACTION

DEFENDANT	CAUSES OF ACTION
CLACKAMAS COUNTY	Violation of 7th Amendment Rights, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Unlawful Detention, Failure to Train/Monell,

DEFENDANT	CAUSES OF ACTION
	Destruction of Property/Claim Rights, Denial of Equal Protection
WEST LINN POLICE DEPARTMENT	Malicious Prosecution, Conspiracy to Deprive Civil Rights, Unlawful Detention, Failure to Train/Monell, Failure to Protect, Destruction of Property/Claim Rights, Denial of Equal Protection
DANA GUNNARSON	Unlawful Detention, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Destruction of Property/Claim Rights
CATLIN BLYTH	Unlawful Detention, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Destruction of Property/Claim Rights
CLACKAMAS COUNTY SHERIFF'S DEPARTMENT	Failure to Train, Failure to Protect, Denial of Adequate Medical Care, False Imprisonment
CLACKAMAS COUNTY JAIL	Failure to Train, Failure to Protect, Denial of Adequate Medical Care, False Imprisonment
REBECCA PORTLOCK	Malicious Prosecution, Conspiracy with West Linn Defendants, and [Ruben Medena & Steele]
JOHN DOES 1-2	See complaint for further allegations

XIII. JURY TRIAL REQUESTED

SEVENTH AMENDMENT DEMAND FOR A CIVIL JURY TRIAL

197

Pursuant to Rule 38(b) of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution,

Plaintiff Tyler Allen Lofall hereby demands a trial by jury on all issues so triable in this case.

Legal Basis

198

The Seventh Amendment to the Constitution guarantees the right to a jury trial in civil cases where the value in controversy exceeds twenty dollars. In this action, the Plaintiff asserts claims arising under federal law and/or state law, and the amount in controversy exceeds the jurisdictional threshold required for a jury trial. As such, Plaintiff respectfully requests that all factual issues relating to liability, damages, and all other matters so triable be decided by a jury.

XIV. CONCLUSION

199

The detailed factual and legal allegations presented demonstrate that the defendants, acting under color of state law, engaged in a series of actions that directly violated the plaintiff's constitutional rights. Plaintiff respectfully requests that the Court grant the relief sought to rectify the profound misconduct and ensure accountability for the egregious constitutional violations perpetrated by the defendants.

XV. PRAYER FOR RELIEF

Plaintiff seeks the following relief:

1. Compensatory Damages:

- Compensatory damages for financial losses, emotional distress, and the impact on personal and professional life as outlined in the damages section.

2. Punitive Damages:

- Punitive damages for the willful and reckless disregard for the plaintiff's rights by the defendants, intended to deter future violations.

3. Injunctive Relief:

- Injunctive relief to mandate systemic reforms within the West Linn Police Department, Clackamas County Jail, and relevant state entities to prevent further violations of civil and constitutional rights.

4. Declaratory Judgment:

- A declaration that the defendants' actions violated the plaintiff's rights under the Fourth, Seventh, and Fourteenth Amendments of the United States Constitution.

5. Restoration of Rights:

- Restoration of plaintiff's claims, including the reinstatement of contractual rights and the opportunity for a fair jury trial.

- Reasonable costs, and any other relief the Court deems just and appropriate.

As I stand before this court broken yet, unyielded it is my fervent hope that my plight and struggle illuminate the dire need for profound systemic changes. This is not merely a plea for personal redress but a call to uphold the fundamental tenets of femocracy and human dignity that should define our society. Let this case be a turning point that ensures no other citizen must

endure such grave injustices under the watch of those sworn to protect us all.

Respectfully Submitted on my own behalf,

This 9th day of October 2024,

Tyler Allen Lofall

TYLER ALLEN LOFALL

Plaintiff Pro Se

ATTACHMENTS:	ADDENDED INFORMATION:
(1) Motion to leave to file Second Amended Complaint (2) Second Amended Complaint (This Complaint) (3) Clause to Exhibit Link Second Amended Complaint (4) Master Exhibit List (5) Linked Exhibits	(1) Federal Compliance Check (2) List of filings returned When Submitted (3) Prescription -11.00 /-12.00 (4) Requesting additional assistance under the ADA

This revised Second Amended Complaint includes:

- **Evidence References:** Each cause of action includes references to specific exhibits and page numbers that support the allegations.
- **Constitutional Provisions:** Constitutional rights violated are clearly stated within each cause of action.
- **Corrected Dates and Days:** All dates have been verified, and days have been reinserted where necessary for accuracy.
- **Attachments:** An exhibit list and exhibits are referenced and should be attached to the complaint when filed.

Compliance Check (Third Person) for Federal Claims and Jurisdiction:

The following section revises the compliance check for each federal claim, highlighting whether the claims are properly brought under **federal law** and satisfy the required elements for jurisdiction under **42 U.S.C. § 1983** and applicable constitutional provisions.

---

1. Unlawful Detention (Fourth Amendment)

Jurisdiction:

This claim arises under the **Fourth Amendment** (protecting against unreasonable seizures) and **42 U.S.C. § 1983**, allowing for claims against state actors.

Compliance:

The Plaintiff must demonstrate:

1. Detention or seizure of the Plaintiff. ✔
2. Without legal justification or probable cause. ✔
3. Conducted under color of state law (performed by government officials). ✔

Facts that Satisfy the Claim:

- The Plaintiff was detained on **March 6, 2022** by Officers Gunnarson and Blyth within **8 minutes** of their arrival, without being questioned or properly investigated.
- The arrest was made despite exculpatory evidence, including **witness statements and video evidence**.
- The officers acted under **color of state law** as members of the West Linn Police Department.

✅ **Federal Compliance:** The claim is properly asserted under **42 U.S.C. § 1983** for a **Fourth Amendment** violation, and all elements are supported by facts.

---

2. Malicious Prosecution (Fourth and Fourteenth Amendments)

Jurisdiction:

Malicious prosecution claims under **Section 1983** can invoke the **Fourth Amendment** (regarding deprivation of liberty through unlawful seizure) and the **Fourteenth Amendment** (due process violations).

Compliance:

The Plaintiff must demonstrate:

1. The initiation or continuation of criminal prosecution by the Defendants. ✔
2. The prosecution lacked probable cause. ✔
3. The Defendants acted with malice or improper purpose. ✔
4. The prosecution was terminated in favor of the Plaintiff. ✔

Facts that Satisfy the Claim:

- Officers and the DA initiated **criminal charges** based on **Macy's manipulated testimony**.
- They ignored **exculpatory evidence**, including video footage and Macy's statements.
- The DA and officers acted with **malicious intent** in fabricating evidence and suppressing favorable evidence.
- The prosecution ultimately ended with **dismissed charges**.

✅ **Federal Compliance:** The claim is properly asserted under **42 U.S.C. § 1983**, with facts supporting violations of the **Fourth** and **Fourteenth Amendments**.

---

3. Conspiracy to Deprive Civil Rights (Fourteenth Amendment, Section 1983)

Jurisdiction:

This claim falls under the **Fourteenth Amendment** (due process) and **42 U.S.C. § 1983**, enabling suits for conspiracy to deprive constitutional rights.

Compliance:

The Plaintiff must demonstrate:

1. Two or more people conspired to deprive the Plaintiff of constitutional rights. ✔
2. An overt act in furtherance of the conspiracy. ✔
3. The Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- The DA and law enforcement **conspired** to suppress evidence and prosecute the Plaintiff without probable cause.
- The **transcript** shows Macy recanting her testimony and exposing the DA's lies.

- Plaintiff was harmed by the wrongful prosecution and detention.

✅ **Federal Compliance:** The **conspiracy** claim is properly brought under **Section 1983**, supported by the Fourteenth Amendment, with sufficient factual backing.

---

4. Failure to Prevent Harm (Fourteenth Amendments)

Jurisdiction:

This claim arises under **42 U.S.C. § 1983** for violations of the **Fourteenth Amendment** (for detainees) and the **Fourteenth Amendment** (due process for pretrial detainees).

Compliance:

The Plaintiff must demonstrate:

1. The Defendants had a duty to prevent harm to the Plaintiff. ✔
2. They knew of the harm but failed to act. ✔
3. The Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- Plaintiff reported **Macy's violent behavior** multiple times, including threats and property destruction.
- Officers took no action to prevent harm, allowing Macy to continue her assaults for **three days**.

✅ **Federal Compliance:** The claim for **failure to prevent harm** under the **Fourteenth Amendments** is valid under **Section 1983**, and the facts support the claim.

---

5. Cruel and Unusual Punishment (Fourteenth Amendment)

Jurisdiction:

This claim is brought under the **Fourteenth Amendment** (prohibiting cruel and unusual punishment) and **Section 1983**.

Compliance:

The Plaintiff must demonstrate:

1. The Defendants subjected the Plaintiff to inhumane conditions or punishment. ✔
2. The punishment was grossly disproportionate or cruel. ✔
3. The Defendants were acting under color of state law. ✔

Facts that Satisfy the Claim:

- Jail staff denied the Plaintiff access to **medical care** (leaving him blind) and exposed him to **COVID-19** by housing him with infected inmates.
- Jail conditions were inhumane and posed a risk to Plaintiff's health.

✅ **Federal Compliance:** The claim is compliant with **Section 1983** for an **Fourteenth Amendment** violation, supported by factual allegations.

---

6. False Imprisonment (Fourth and Fourteenth Amendments)

Jurisdiction:

The claim for false imprisonment is based on **unreasonable detention** under the **Fourth Amendment** and **due process** under the **Fourteenth Amendment**, brought through **Section 1983**.

Compliance:

The Plaintiff must demonstrate:

1. The Plaintiff was detained without consent. ✔
2. The detention was without legal authority. ✔
3. The Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- The Plaintiff was unlawfully detained **beyond his court-ordered release date** of July 1, 2022, for an additional week.

✅ **Federal Compliance:** The claim is compliant under **Section 1983** for **Fourth and Fourteenth Amendment** violations, with facts supporting wrongful detention.

---

7. Deliberate Indifference (Fourteenth Amendments)

Jurisdiction:

The **Fourteenth Amendment** protects detainees from deliberate indifference to medical needs, and the **Fourteenth Amendment** applies this protection to pretrial detainees. The claim is brought under **Section 1983**.

Compliance:

The Plaintiff must demonstrate:

1. Defendants knew of a substantial risk to Plaintiff's health or safety. ✔
2. Defendants disregarded that risk. ✔
3. Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- The Plaintiff was denied **corrective lenses**, leaving him effectively blind, and was exposed to **COVID-19** despite known health risks.
- Jail staff ignored grievances and failed to address medical needs.

✅ **Federal Compliance:** The **deliberate indifference** claim is properly asserted under **Section 1983** for **Fourteenth Amendment** violations.

---

8. Intentional Interference with Contractual Relations (Fourteenth Amendment, Due Process Clause)

Jurisdiction:

This claim invokes the **Fourteenth Amendment (Due Process Clause)**, as it involves arbitrary interference with a property right (the Assignment of Benefits), brought under **Section 1983**.

Compliance:

The Plaintiff must demonstrate:

1. The Plaintiff had a valid contract. ✔
2. Defendants knew of the contract. ✔
3. Defendants intentionally interfered. ✔
4. Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- Jail staff, particularly **Heidi Wooster**, intentionally blocked access to the law library, preventing Plaintiff from protecting his **Assignment of Benefits** contract.

✅ **Federal Compliance:** The claim is compliant under **Section 1983** for **Fourteenth Amendment (Due Process Clause)** violations.

---

9. Monell Claim (Failure to Train and Official Custom of Deliberate Indifference)

Jurisdiction:

This claim is brought under **42 U.S.C. § 1983** for municipal liability based on the failure to train officers and a custom of deliberate indifference.

Compliance:

The Plaintiff must demonstrate:

1. A policy or custom of the municipality led to a constitutional violation. ✔
2. The policy or failure to train was the moving force behind the violation. ✔
3. Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- **West Linn Police Department** and **Clackamas County** had a **policy of deliberate indifference** and failed to train officers on proper arrest procedures, evidence handling, and detainee care.

✅ **Federal Compliance:** The **Monell claim** is compliant under **Section 1983**, supported by facts showing the municipality's failure to train and maintain proper policies.

Conclusion:

All federal claims brought under **42 U.S.C. § 1983** are jurisdictionally proper and **compliant** with the relevant constitutional provisions. Each cause of action is supported by sufficient facts, and the appropriate federal claims are being made for this jurisdiction.

Tyler Allen Lofall, Plaintiff in this matter, respectfully submits this Notice to the Court, outlining key factors essential for the proper handling of this case. The Plaintiff requests that the Court take immediate and urgent action to exercise jurisdiction over this case and its associated parties due to the systemic and interrelated nature of the harms alleged, which span multiple levels of local and state government.

Coordination of Actions between State and Federal Courts

The Plaintiff's case, originally scheduled for trial on January 9, 2024, in Clackamas County state court under case number **22CV39627**, was met with repeated delays and procedural manipulation by the West Linn Defendants. Following these delays, and the intentional rescheduling by the defense to avoid trial dates, the case was reset for May 2024, nearing the expiration of the statute of limitations for other critical defendants in this case.

The Plaintiff has filed motions in both state and federal court seeking relief, including a motion for the federal court to exercise jurisdiction over all claims and parties. This motion reflects the Plaintiff's belief that the only fair venue for this case is federal court, due to the systemic bias and judicial misconduct observed in Clackamas County, as well as the pattern of intentional obstruction by the defendants. The West Linn Defendants, particularly Officers Dana Gunnarson and Catlin Blyth,

must be joined with the other defendants, as the chain of events leading to the harms alleged cannot be litigated piecemeal. The Plaintiff therefore respectfully submits a **Motion to Dismiss the State Court Proceedings**, contingent upon federal court approval of this case. If federal jurisdiction is granted, the Plaintiff will voluntarily dismiss the state court case in its entirety.

Pattern of Procedural Abuse

The Plaintiff has observed a concerted effort by the West Linn Defendants to manipulate the trial schedule for their benefit, including rescheduling the trial around personal events that were foreseeable long before they requested postponements. The defense has exploited these delays to prolong litigation and obstruct justice, preventing the Plaintiff from having his day in court. In addition, the West Linn Police Department has engaged in a pattern of obstructive behavior by repeatedly denying the Plaintiff access to critical evidence, such as body camera footage, which has been requested over 14 times and unlawfully withheld or destroyed.

These delays have compounded the harm suffered by the Plaintiff and underscore the need for this case to be moved entirely to federal court. The Plaintiff has also uncovered evidence of collusion between the state judiciary and the defendants, further demonstrating that Clackamas County is unfit to adjudicate this matter impartially.

DOCUMENTS ATTEMPTED TO GIVE THE COURT AND THEY RETURNED MULTIPLE TIMES		
PART	DOCUMENT	TOTAL PAGES
1	00 COVER LETTER	
	01 CIVIL COVER SHEET	
	1. NOTICE OF LAWSUIT & REQUEST TO WAIVE SERVICE OF SUMMONS	
	2. MOTION FOR APPOINTMENT OF PROBONO COUNSEL	
	3. PROPOSED ORDER APPOINTMENT OF PROBONO COUNSEL	
	4. NOTICE OF REMOVAL	
	5. LOFALL VS THE STATE OF OREGON 'MAIN COMPLAINT'	
	6. LOFALL VS THE STATE OF OREGON 'COMPLAINT C'	
	7. EVIDENCE – COMPLAINT C VIDEO PROOF POLICE ALLOWED CAR THEIF TO TAKE KEYS AND LEAVE	
	8. LOFALL VS THE STATE OF OREGON 'EXHIBITS & DUTIES'	
	9. MOTION TO PROCEED FORMA PAUPERIS	
	10. PROPOSED ORDER TO PROCEEED FORMA PAUPERIS	
	11. MOTION TO STAY STATE COURT PROCEEDINGS PENDING REMOVAL TO FEDERAL COURT	
	12. COURT TRANSCRIPT JUNE 10TH 2022	
	13. COURT TRANSCRIPT JUNE 24TH 2022	
	14. DECLARATION – MACY BAILED LOFALL OUT OF JAIL	
	15. EXHIBIT – COMPLAINT A 'LOFALL VS ESTATE OF JOANNA LEE BOZIAN & HEIRS TEAGUE BOND AND ZAC BOND	
	16. EXHIBIT – COMPLAINT A 'PROOF OF THE AOB & FAULT'	
	17. EXHIBIT – COMPLAINT B 'LOFALL VS WEST LINN NOTE: CURRENTLY ON HOLD	

	WAITING THE FEDERAL COURT TO TAKE JURISDICTION	
	18. EXHIBIT – MSJ CLAIM WALK THROUGH Of Every Claim With Evidence From The State On Every Element. Complaint B	
	19. DECLARATION OF SANDRA CASEY *Validating Macy Messages – Gov Leveraged Custody Of Mother's Custody Of Her Children Over Her Falsly Testifying Against Lofall*	
	20. EXHIBIT – MESSAGES BETWEEN SANDRA CASEY AND MACY *During Lofalls Incarceration*	
	21. EXHIBIT – MESSAGES THE THREE DAYS PRIOR TO THE FALSE ARREST *Showing: A. Macys Aggressiveness And Lofall Very Calm, Including Macy Threats To Burn Down Lofalls Property. B. Macy Had Lofalls Work Files And Car Keys Preventing Him From Leaving*	
	22. **EXHIBIT – LETTER TO CLACKAMAS COUNTY** – *Reg John Does 1 And 2*	
	23. **EXHIBITS (3) – DANNA GUNNARSONS QUESTIONAIRE TO MACY** *Did Not Qualify As Domestic Violence Victim*	
	24. **EXHIBIT – PICTURE BROKEN WINDOWS** – *Macy Broke Out 7 Broken Windows And A Door To Lofalls Residence.*	
	25. EXHIBIT – *(Picture 1) At Incident Lofall Gets Attacked With A Hose And Hammer From Macy*	
	26. EXHIBIT – *(Picture 2) At Incident Lofall Gets Attacked With A Hose And Hammer From Macy*	
	27. EXHIBIT – *(Picture 3) At Incident Lofall Gets Attacked With A Hose And Hammer From Macy*	
	28. **EXHIBIT** *-Zoomed In Picture Of Hammer In Macys Hands*	
	29. **EXHIBIT** – *Macy Bails Lofall out of jail May 10th 2022 through Larry Sherman*	
	30. **EXHIBIT** – *More Pictures Of Macys Broken Chaos*	
	31. **TRIAL NOTEBOOK 3** – LOFALL IS READY FOR TRIAL	

COPIES SENT TO ALL ACCUSED DEFENDANTS INCLUDING: WEST LINN POLICE DEPARTMENT, DANA GUNNARSON, CATLIN BLYTH, WILLIAM STABLER, , REBECCA PORT`LOCKS COUNCEL, CLACKAMAS COUNTY COURTS, CLACKAMAS COUNTY JAIL, CLACKAMAS COUNTY SHERRIFFS DEPARTMENT, JOHN DOES 1 & 2

HOWEVER THE DOCUMENTS SENT INSIDE CLACKAMAS COUNTY GOVERNMENT OFFICIAL POSITIONS WERE RETURNED AND THE LETTERS (Clackamas County Sherriff's office, Clackamas County Jail, and The District Attorney's office) YET THE WEIGHED EXACTLY THE SAME AS THE WEST LINN DEFENDANTS AND THE STATE OF OREGONS NOTICE, AND THEY HAD NO PROBLEMS RECEIVING THE LETTERS INCLUDING THE CLACKAMAS COUNTY COURTHOUSE WHOM IS IN THE SAME BUILDING AS THE DISTRICT ATTORNEY; MORE OVER IT WAS PURCHASSED FROM THE POSTOFFICE CASHIER, WHOM KNEW EXACTLY HOW MUCH THEY WEIGHED.

/s/ Tyler A. Lofall
Tyler Allen Lofall

Systemic Harms Beyond the Complaint

While the facts of the complaint will detail specific harms committed by each defendant, it is important to note that this case goes beyond those individual claims. The Plaintiff has discovered, through his interactions with the legal system, that the issues at play are systemic, affecting not only his ability to obtain justice but also the integrity of the

court system itself. The Plaintiff asserts that the intentional actions of local and state actors, combined with a judiciary corrupted by design, have deprived him of his constitutional rights at every level of government. This is not merely a case of procedural failures; it is evidence of a larger blueprint of corruption within the system that must be exposed and addressed.

The Plaintiff remains committed to holding all involved parties accountable for their actions and will not hesitate to expose this corruption publicly if the courts continue to deny justice. While the primary facts of this case are detailed in the complaint, the Plaintiff believes that immediate action is required by the federal court to prevent further harm and delays. The Plaintiff also requests that the federal court allow for the removal of any defendants from the complaint, should it decline to take jurisdiction over specific individuals or claims.